

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 25-25

Served: December 8, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

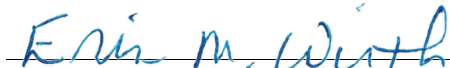
EXTENSION OF DISCOVERY DEADLINES

On December 5, 2025, Respondent filed an unopposed motion to extend discovery deadlines. Respondent states that Complaint does not oppose the requested extension and the parties agree that good cause exists to “finalize the ESI Protocol and proposed Protective Order and proceed with discovery in an efficient and orderly manner.” Motion at 4.

The motion states that the parties have exchanged initial disclosures. Complaint provided a draft Protocol Regarding Electronically Stored Information on October 8, 2025, and the parties met to discuss those documents on four different dates. Moreover, the motion indicates that the parties are engaged in “preliminary, good-faith settlement discussions.” Motion at 3.

The parties seek to extend discovery deadlines, however, the schedule from March 12, 2026, forward is unchanged. The request is reasonable, and the parties have been regularly meeting to discuss the proceeding. The parties are encouraged to work expeditiously to begin discovery. Accordingly, the motion is hereby **GRANTED**. The December 2025 deadlines are stricken from the schedule and the following deadlines are imposed:

- a. Serve initial RFPs and Interrogatories if not yet served by December 15, 2025.
- b. Serve objections and initial responses to initial RFPs by January 15, 2026;
- c. Serve objections and initial responses to initial Interrogatories by January 15, 2026;
- d. Submit any unresolved disputes concerning initial RFPs and Interrogatories and objections and responses thereto (after counsel confer directly) by January 29, 2026; and
- e. All other scheduled deadlines will remain the same.


Erin M. Wirth
Chief Administrative Law Judge